

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JANAQUAL ASHAQUA,

Plaintiff,

-against-

POLICE OFFICER PATRICK O'DONNELL, Tax No.
953193, SERGEANT GERARD SALVIA, Tax No.
946616, and SERGEANT BRIAN KLARMAN, Tax No.
946595,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 22, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER PATRICK O'DONNELL, Tax No. 953193, 25th Precinct, 120 E
119th St, New York, NY 10035
SERGEANT GERARD SALVIA, Tax No. 946616, 25th Precinct, 120 E 119th St, New
York, NY 10035
SERGEANT BRIAN KLARMAN, Tax No. 94659525th Precinct, 120 E 119th St, New
York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JANAQUAL ASHAQUA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER PATRICK O'DONNELL, Tax No.
953193, SERGEANT GERARD SALVIA, Tax No.
946616, and SERGEANT BRIAN KLARMAN, Tax No.
946595,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, JANAQUAL ASHAQUA by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, Section 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On October 24, 2016, at approximately 7:00 p.m., plaintiff, Janaqual Ashaqua, while lawfully inside of 2015 Madison Avenue, New York, New York, was falsely arrested, falsely imprisoned, unlawfully seized and subjected to excessive force by the defendants when they slammed plaintiff to the ground, tased him twice, and transported him to Harlem Hospital against his will without any legal justification or probable cause. Plaintiff was deprived of his constitutional rights when the individual defendants falsely arrested, falsely imprisoned and unlawfully seized him in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JANAQUAL ASHAQUA is a resident of New York, New York.

3. POLICE OFFICER PATRICK O'DONNELL, Tax No. 953193, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER PATRICK O'DONNELL, Tax No. 953193, is and was at all times relevant herein, assigned to the 25th Precinct.

5. POLICE OFFICER PATRICK O'DONNELL, Tax No. 953193, is being sued in his individual and official capacity.

6. SERGEANT GERARD SALVIA, Tax No. 946616, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT GERARD SALVIA, Tax No. 946616, is and was at all times relevant herein, assigned to the 25th Precinct.

8. SERGEANT GERARD SALVIA, Tax No. 946616, is being sued in his individual and official capacity.

9. SERGEANT BRIAN KLARMAN, Tax No. 946595, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT BRIAN KLARMAN, Tax No. 946595, is and was at all times relevant herein, assigned to the 25th Precinct.

11. SERGEANT BRIAN KLARMAN, Tax No. 946595, is being sued in his individual and official capacity.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and the City of New York at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 24, 2016, at approximately 7:00 p.m., plaintiff was lawfully inside of 2015 Madison Avenue, New York, NY.

18. On October 24, 2016, at approximately 7:00 p.m., the defendant police officers responded to 2015 Madison Avenue, New York, New York.

19. At no point in time did plaintiff commit a crime, nor did the police officers have any reason to believe plaintiff committed a crime.

20. At no point did plaintiff physically or verbally threaten anyone.

21. Suddenly, without provocation or legal justification, the defendant police officers grabbed plaintiff, slammed him onto the ground, and tased him two times in the abdomen, causing plaintiff to suffer serious physical injuries.

22. The use of excessive force against plaintiff by slamming plaintiff onto the ground and tasing plaintiff twice were the direct and proximate cause of the serious injuries to plaintiff's head and abdomen.

23. Notably, at no point in time did plaintiff resist the defendant police officers in any way.

24. The defendant police officers then unlawfully handcuffed and unlawfully arrested plaintiff without probable cause or legal justification or any objective reason to believe that the plaintiff was a danger to himself or others.

25. Thereafter, EMS transported the plaintiff transported to Harlem Hospital against his will.

26. The defendant police officers knowingly and wrongfully accused plaintiff of being emotionally disturbed person.

27. Defendants had no objective reason to believe plaintiff was an emotionally disturbed person.

28. Defendants had no objective reason to believe plaintiff was a danger to himself or others.

29. Upon arrival at Harlem Hospital, plaintiff received medical treatment for the physical injuries inflicted by the defendant police officers.

30. Plaintiff had four taser barbs in plaintiff's abdomen removed, had a catscan of plaintiff's head, and was prescribed pain medication for his physical injuries.

31. Further, a medical evaluation at the hospital concluded that plaintiff was cooperative and calm, did not suffer from any form of psychosis, and that he was not a danger to himself or others.

32. On October 25, 2016 at approximately 12:30 a.m., after approximately 5 hours in custody, the defendant police officers removed plaintiff's handcuffs and released him from custody at the hospital without being charged with a crime.

33. At no time did plaintiff commit a crime, nor did the defendant police officers have reason to believe he committed a crime.

34. Plaintiff was placed under arrest and unlawfully detained and confined without legal justification or probable cause.

35. Some of the defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful detention, unlawful seizure, unlawful confinement, false arrest, false imprisonment, and use of excessive force against plaintiff.

36. The false arrest, unlawful seizure, false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named defendants while acting in concert and within the scope of their authority and acting under the color of law and as state actors, caused plaintiff to be falsely arrested and falsely imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City of New York as the employers of the officers is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The use of excessive force by defendants slamming plaintiff onto the ground and tasing plaintiff twice was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION**Failure to Intervene**

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

49. Defendants failed to intervene to prevent the unlawful conduct described herein.

50. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City of New York as the employers of the officer are responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

53. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Janaqual Ashaqua demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 22, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER PATRICK O'DONNELL, Tax No. 953193, 25th Precinct, 120 E 119th St, New York, NY 10035
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 22, 2019

/s/
STUART E. JACOBS, ESQ.